

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

----- X
MARIAH CHARLES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") ARONY YOUSSEF, and
Sergeant HAITHAM HUSSAMELDIN (Shield #4514),
in their individual capacities,

Defendants.
----- X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings
County as place of trial.

The basis of venue is the location of
the unlawful acts

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
July 27, 2018

BELDOCK LEVINE & HOFFMAN LLP



By:

Gillian Cassell-Stiga
99 Park Avenue, PH/26th Fl.
New York, New York 10016
(212) 490-0400

Attorneys for Plaintiffs

To:

City of New York Corporation Counsel of the City of New York 100 Church Street New York, NY 10007
Officer ARONY YOUSSEF 1 Police Plaza New York, NY 10038
Sergeant HAITHAM HUSSAMELDIN (Shield #4514) 1 Police Plaza New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

----- X
MARIAH CHARLES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") ARONY YOUSSEF, and
Sergeant HAITHAM HUSSAMELDIN (Shield #4514),
in their individual capacities,

Defendants.
----- X

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MARIAH CHARLES, through her attorney Gillian Cassell-Stiga of Beldock
Levine & Hoffman, LLP, as and for her complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, arrested, and searched her. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of her constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

4. Plaintiff MARIAH CHARLES was at all times relevant to this action, a resident of Kings County in the State of New York.
5. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named individual defendants.
6. New York City Police Department Officer ("P.O.") Arony Youssef and Sergeant ("Sgt.") Haitham Hussameldin (Shield #4514) (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The individual defendants are being sued in their individual capacities.
9. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
10. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
11. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

JURISDICTION AND VENUE

12. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

ADMINISTRATIVE PREREQUISITES

14. Plaintiff filed a Notice of Claim upon defendant City of New York and the individual defendants at the Offices of the City Comptroller, in accordance with the General Municipal Law.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

15. At least thirty days have elapsed since filing of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

16. On April 28, 2017, at approximately 8:45 a.m. and thereafter, Mariah Charles was unlawfully arrested by Sgt. Hussameldin and P.O. Youssef at or about 115 Wolcott Street in Kings County in the State of New York.
17. Shortly before her arrest, Mariah was walking to school with a friend.
18. Sgt. Hussameldin and P.O. Youssef parked their patrol car, exited, and intercepted Mariah on her way to school, approximately half a block from the school building.
19. Sgt. Hussameldin asked Mariah where she was going.
20. Mariah informed the officer that she was heading to school, indicating towards the building, and continued walking in that direction.
21. Sgt. Hussameldin asked Mariah for her identification.
22. Mariah stated that she just wanted to go to school.
23. P Sgt. Hussameldin grabbed Mariah and stopped her from proceeding to school.
24. Together Sgt. Hussameldin and P.O. Youssef aggressively forced Mariah onto the ground and placed her in handcuffs, with her backpack still on her body.
25. Together Sgt. Hussameldin and P.O. Youssef lifted Mariah off the ground in handcuffs with her backpack dangling from her body and placed her in the patrol vehicle.
26. The force utilized against Mariah left visible bruises.
27. Mariah informed the officers that she felt ill, needed to vomit, and could not breathe. Despite this, Mariah was first taken to the precinct.

28. Eventually Mariah was taken to the hospital, where she was treated, and then was returned to the precinct.
29. Mariah repeated to the officers, "I just want to go to school."
30. Mariah was held in custody and then released under twenty-four hours later.
31. Mariah was charged with Obstruction of Governmental Administration in the Second Degree (P.L. § 195.05) and Resisting Arrest (P.L. § 205.30).
32. The charges were based on the materially false statements submitted by the individual defendants, including that Mariah refused to identify that she attended school.
33. Mariah had committed no criminal acts and her arrest was without probable cause.
34. Mariah's friend filmed the officers assault on Mariah with her cellphone.
35. Surveillance video also recorded the entire interaction.
36. Mariah was criminally prosecuted through and until June 19, 2018, when all charges against her were dismissed.
37. As a result of the assault and arrest, Mariah experienced pain, anxiety, suffering, mental anguish, and humiliation.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against the individual defendants)**

38. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
39. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of her rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom

from unreasonable seizure of her person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from the use of excessive force; (e) right to fair trial and due process under the law; (f) freedom from the fabrication of evidence or the lodging of false charges against her by police officers; (g) freedom from malicious prosecution; and (h) failure to intervene to prevent the complained of conduct.

40. Defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL
VIOLATIONS – 42 U.S.C. § 1983
(Against defendant the City of New York)

41. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

42. At all times material to this complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

43. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the individual defendants and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline the individual defendants.

44. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, Sixth and Fourteenth Amendments.

45. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

**THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

46. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

47. By the actions described above, the individual defendants caused to be falsely arrested or falsely arrested plaintiff, without reasonable or probable cause and without any right or authority to do so, illegally and without a warrant.

48. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

49. The conduct of the individual defendants alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiffs pursuant to the state common law doctrine of respondeat superior.

50. As a result of the foregoing, plaintiff was deprived of her liberty, suffered bodily injury, psychological and emotional injury, pain and suffering, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

51. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
52. By the actions described above, the individual defendants did inflict assault and battery upon plaintiff. The acts and conduct of individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
53. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
54. As a result of the foregoing, Plaintiff suffered emotional distress, humiliation, and was otherwise damaged and injured.

**FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

55. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
56. By the actions described above, the individual defendants caused a criminal proceeding to be initiated against Plaintiff, even though there was no probable cause for an arrest or prosecution in this matter. The individual defendants maliciously caused this prosecution to be initiated in that they knew there was no probable cause for such prosecution and that they further wished to harm and punish Plaintiff for illegitimate reasons and to cover for the

individual defendants' misdeeds. The criminal case against Plaintiff was terminated in her favor in that all charges were dismissed.

57. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
58. As a result of the foregoing, Plaintiff was deprived of her liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
ABUSE OF PROCESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

59. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
60. By the conduct and actions described above, the individual defendants caused regularly issued process to be issued against Plaintiff compelling the performance or forbearance of prescribed acts, including but not limited to causing criminal process to issue. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and the individual defendants were seeking a collateral advantage or corresponding detriment to Plaintiff, including but not limited to covering for their own misdeeds by causing Plaintiff to be charged with crimes, a goal which was outside the legitimate ends of the process. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

61. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
62. As a result of the foregoing, Plaintiff was deprived of her liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

**SEVENTH CLAIM FOR RELIEF
NEGLIGENCE
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

63. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
64. Defendants owed a duty of care to Plaintiff to prevent the physical, mental, and economic damages sustained by Plaintiff. Under the same or similar circumstances, a reasonable, prudent, and careful person would have anticipated that an injury to Plaintiff or to those in a like situation would probably result from this conduct.
65. Defendants jointly and severally, negligently caused injury, pain and suffering, emotional distress, and damage to Plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
66. Defendant City and Acacia negligently hired, screened, retained, supervised, and trained the individuals defendants.

67. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

**EIGHTH CLAIM FOR RELIEF
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK**

(Against all defendants)

68. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

69. By the actions described above, defendants engaged in extreme and outrageous conduct, which negligently caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

70. As a result of the foregoing, Plaintiff was deprived of her liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

**NINETH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK**

(Against all defendants)

71. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

72. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and

violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. As a result of the foregoing, Plaintiff was deprived of her liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

JURY DEMAND

74. Plaintiff demands a trial by jury in this action on each and every one of her damage claims.

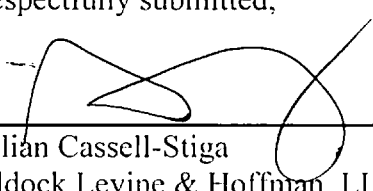
WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That she be compensated for violation of her constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That she be awarded punitive damages against the individual defendants; and
- c. That she be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
July 27, 2018

Respectfully submitted,

By:



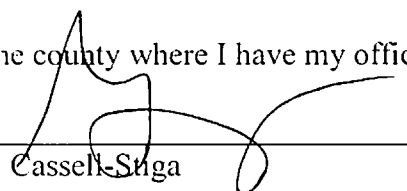
Gillian Cassell-Stiga
Beldock Levine & Hoffman, LLP
Attorneys for the Plaintiff
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-490-0400

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

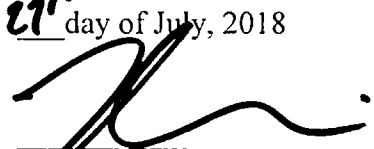
GILLIAN CASSELL-STIGA, an attorney duly admitted to practice before the Courts of the State of New York, being duly sworn, deposes and says:

I am the attorney for the plaintiff in this action. The foregoing Complaint is true to my knowledge except as to those matters therein stated on information and belief and as to those matters I believe them to be true. The grounds of my belief as to all matters are: discussions with the plaintiff by attorneys in my office; writings furnished to me by the plaintiff; records obtained in the course of the investigation. Pursuant to CPLR 3020(d)(3), the verification is not made by Plaintiff Mariah Charles, because she does not resident in the county where I have my office.



Gillian Cassell-Stiga

Sworn to before me this
27th day of July, 2018



Notary Public

KEITH MICHAEL SZCZEPANSKI
Notary Public, State of New York
No. 02SZ6325315
Qualified in Kings County
Commission Expires May 26, 2019